

GA-HR-07

Disciplinary Code & Procedure

Fair and consistent standards, investigation, hearing rights, possible outcomes, appeals, and records.

APPLIES TO

Gardner Academy employees and relevant staff

AUTHORITY

Employment Contract clauses 10 and 11; Annexure B

01 Purpose and standards

Discipline must be fair, consistent, and aligned with Namibian labour law. Employees must perform duties diligently, comply with school policies and lawful instructions, maintain confidentiality, treat learners, families, and colleagues respectfully, and protect the school's reputation.

02 Examples of misconduct

Misconduct may include:

- Breach of confidentiality.
- Absenteeism or lateness without permission.
- Negligence or poor performance.
- Insubordination.
- Harassment or discrimination.
- Theft, fraud, or dishonesty.
- Bringing the school into disrepute.
- Breach of child-protection policies.

03 Informal and formal action

Minor concerns may be addressed through counselling or a verbal warning. Serious or repeated misconduct may result in a written warning, final written warning, suspension, or dismissal. The appropriate response depends on the facts, seriousness, previous record, and mitigating circumstances.

04 Right to a fair hearing

Before dismissal, the employee must:

- Receive written notice of the allegations.
- Receive reasonable time to prepare.
- Have a reasonable opportunity to state their case.
- Have the right to be represented by a fellow employee.
- Receive a written outcome.

05 Termination and fairness

Employment may be terminated only for a fair and valid reason related to conduct, capacity, or operational requirements and after the applicable fair disciplinary or consultation procedure. Nothing limits rights under the Labour Act or the jurisdiction of the Labour Commissioner or Labour Court.

06 Appeal

An employee may appeal a disciplinary decision to the School Board or Governing Body within the period stated in the written outcome or applicable procedure. The appeal should identify the decision challenged, the reason for the appeal, and any relevant information the employee believes should be reconsidered.